

Tentative Rulings
August 6, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

16. *Renteria v. FCA US LLC, et al*, Case No. CIVSB2401203
Defendant FCA's Motion for Judgment on the Pleadings
8/6/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY** the requested judgment on the pleadings (JOP) to the 5th cause for fraudulent inducement-concealment.

Case Summary

This is a lemon law case. Plaintiff alleges that he purchased the subject vehicle on April 10, 2024. He asserts that, despite the vehicle being covered by warranties, it had certain defects and irregularities. Defendants are alleged to have failed to repair the vehicle within a reasonable time or to provide a replacement or make restitution. He also alleges that the defect in the relevant 3.6L engine was known by FCA, but if failed to disclose the defect to him. As such, Plaintiff filed suit on October 15, 2024, alleging (1) violation of Civil Code section 1793.2(d) against FCA; (2) violation of Civil Code section 1793.2(b) against FCA; (3) violation of Civil Code section 1793.2(a)(3) against FCA; (4) breach of the implied warranty of merchantability against FCA; (5) fraudulent inducement-concealment against FCA; and (6) negligent repair against Sierra Monrovia

Summary of the Law

A party may bring a motion for judgment on the pleadings after filing an answer and the time to demurrer has expired. (Code Civ. Proc., § 438(b)(1) & (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548.) If the moving party is the defendant, then a motion for judgment on the pleading (JOP) is limited to the grounds that the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. (Code Civ. Proc., § 438(c)(1)(B).) The grounds for a JOP shall appear on the face of the pleading or from any matter judicially noticed. (Code Civ. Proc., § 438(d).)

Analysis

Here, Defendant FCA moves for a judgment on the pleading to the 5th cause of action on four grounds: (1) time-barred; (2) insufficiently pleaded; (3) no duty exists because no transactional relationship; and (4) barred by the economic loss rule.

Time Bar – When, by the face of the complaint, it is clear a claim is time-barred, the plaintiff must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. (*CAMSI IV v. Hunter Technology Corp.* (1991) 230 Cal.App.3d 1525, 1536.) The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand a demurrer. (Id. at pp. 1536-37.)

Contrary to FCA's position, the fraud claim did not necessarily accrue when the subject vehicle was sold because it does not accrue until it *is discovered* or *could have been discovered*.

On the face of the allegations, Plaintiff alleges the concealment was not reasonably discovered until shortly before he filed his Complaint because the vehicle continued to have symptoms after repair attempts. Now, U.S. District Courts have found that when defective symptoms continue with no resolution after repair attempts, that would, at some point, trigger a suspicion and due diligence requirement under the delayed discovery rule. (*Vanella v. Ford Motor Company* (N.D.Cal. 2020) 2020 WL 887978, at p. *6; *Galvez v. Ford Motor Company* (E.D.Cal. 2018) 2018 WL 4700001, at pp. *4-5.) However, on the face of the Complaint, facts are not pleaded to determine, as a matter of law, that by reasonable diligence the discovery of the alleged concealment was over 3 years before the Complaint's filing. Ultimately, even if the delayed discovery allegations are on the weaker end, it pleads enough to preclude finding the fraudulent concealment cause of action is barred based on the face of the Complaint.

Sufficiency of Pleadings – The elements for fraudulent concealment are (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted in the same way knowing of the concealed or suppressed fact; (5) causation; and (6) the plaintiff sustained damages. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.)

The facts that constitute fraud must be alleged fully, factually, and specifically. (*Wilhelm v. Pray, Price, Williams & Russell* (1986) 186 Cal.App.3d 1324, 1331.) The Complaint, here, alleges that Renteria purchased the vehicle with a defective 36L engine which caused loss of power, stalling, engine running rough, and engine misfires. The defective engine was a safety concern. It impaired the use, value, or safety of the vehicle. (¶¶10, 16, 18-20.) Defendant FCA knew of the defect prior to Plaintiff's purchase. Nonetheless, it did not disclose the defect to Plaintiff by way of the dealer's sales agents, advertisements, and/or marketing materials. (¶¶21-24, 26, 28-29, 60-61, 64.) Ultimately, the above allegations sufficiently allege the elements for fraudulent concealment and specify the matter, means, and effect of the concealment.

Transactional Relationship – A duty to disclose material facts arises when (1) the defendant is under statutory or other prescriptive legal obligation; (2) a fiduciary or confidential relationship exists between the defendant and the plaintiff; (3) the defendant has exclusive knowledge of the material facts and knows that they are not reasonably discoverable by the plaintiff; (4) the defendant made some representations but failed to disclose other facts material to qualify the facts disclosed whereby the disclosure was misleading; and (5) the defendant actively concealed the discovery of the material facts from the plaintiff. (*Rattagan, supra*, 17 Cal.5th at p. 40; *SCC Acquisitions, Inc. v. Central Pacific Bank* (2012) 207 Cal.App.4th 859, 864.) The relationship under categories 3-5 is described as transactional. (*Rattagan, supra*, 17 Cal.5th at pp. 40-41.)

However, an action for deceit does not require contractual privity. (*Shapiro v. Sutherland* (1998) 64 Cal.App.4th 1534, 1549.) “[A] defendant cannot escape liability if he or she makes a representation to one person while intending or having reason to expect that it will be repeated to and acted upon by the plaintiff.” (*Id.* at p. 1548.) A duty to disclose may arise from a seller to a subsequent purchaser when it has reason to expect the item will be resold. (*OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 859.)

The facts here are analogous to the examples outlined in *Shapiro* because Plaintiff is only one step removed from the dealer’s acquisition of the car from Defendant FCA, with FCA reasonably expecting that a car sold to a dealership would then be sold to a consumer. Per the Complaint’s allegations, Defendant FCA had exclusive knowledge of, or had a superior position of knowing, the issues existing in the engine [¶¶25-26, 59-61], and it could reasonably know an authorized dealership would sell the vehicle to a consumer, and the dealership would not be able to pass on material information about the vehicle being purchased. Thus, an indirect transactional relationship appears to exist. Additionally, the Complaint alleges a transactional relationship by Defendant FCA warranting the vehicle.

Economic Loss Rule – The Economic Loss Rule provides that a tort recovery for noninsurance contract breaches is precluded unless the alleged violation arises from an independent duty founded on principles of tort law. (*Aas v. Superior Court* (2000) 24 Cal.4th 627, 636, 643; *Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 515.) However, the economic loss rule also does not lie when the contract was fraudulently induced. (*Rattagan, supra*, 17 Cal.5th at p. 41.)

Here, the 5th cause of action pleads fraud in the inducement via fraudulent concealment. It is properly sitting outside the Economic Loss Rule because it concerns conduct before the contract was formed.

17. *Thompson v. Food N Fuel, et al*, Case No. CIVSB2520712
Defendant Food N Fuel’s Motion to Compel Deposition of Plaintiff
8/6/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **GRANT** the motion to compel Plaintiff’s deposition for August 17, 202, at 1:00 p.m. The Court would also **GRANT** sanctions in the amount of \$440, payable within thirty days.

Case Summary

This is a slip-and-fall personal injury case. Plaintiff alleges that on March 11, 2025, she tripped and fell on a curb in the City of San Bernardino. She alleges that Food N Fuel owned or controlled the premises and was aware of the condition of the curb. As such she filed suit on July 18, 2025, against Food N Fuel, Del Taco, City of San Bernardino, and San Bernardino County. All the parties were dismissed except Food N Fuel. The Complaint alleges negligence and premises liability against Food N Fuel.

Relevant here, on August 25, 2025, Food N Fuel first served a notice of the deposition of Plaintiff, originally setting the deposition for January 29, 2026. On January 23, 2026, Plaintiff sent an email cancelling the deposition. (Howell Decl., ¶¶2-3, Exh. A.) Defendant Food N Fuel responded by requesting new dates by January 29, 2026, but no dates were provided. (Howell Decl., ¶¶6-8, Exh. C.) As such, Food N Fuel sent an amended notice this time setting Plaintiff's deposition for June 5, 2026. Plaintiff again cancelled the deposition a couple days prior citing unavailability. On June 5, 2026, Food N Fuel *again* reached out to Plaintiff and asserted that it needed available dates by June 8, 2026, or it would proceed with a motion to compel. No deposition dates were provided, and this motion was filed on July 2, 2026.

Analysis

Here, Plaintiff argues that the motion is now moot because the parties have agreed on a deposition date of August 17, 2026. Based on this representation, the Court would grant the motion and require the Plaintiff's deposition on that date.

Plaintiff also opposes sanctions, arguing that she has complied with Food N Fuel's request for the deposition. However, Plaintiff did not provide a date to reschedule her deposition until *after* Defendant filed its motion to compel. Before that, Plaintiff was not working to set her deposition and the facts support the conclusion that motion work was necessary.

Further, while Plaintiff's initial deposition was unilaterally set, it was set five months out, and Plaintiff waited until six days before the deposition to cancel it. Similarly, when the deposition was set again, it was again cancelled days before without the provision of new dates. Finally, when defense counsel requested new dates, none were provided. Thus, from the record, it appears that Plaintiff's counsel's unresponsiveness necessitated the motion.
